



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12484
(FIRST REVISION)

NOV 28 2000

EXPIRATION DATE: March 15, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Safety-Kleen Corp.
Columbia, SC
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-way, one-time transportation in commerce of two (2) non-DOT specification steel portable tanks containing sodium for disposal. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244(c) in that the use of a non-DOT specification steel portable tank is authorized.
5. BASIS: This emergency exemption is based on the application of Safety-Kleen Corp. dated June 2, 2000, and supplemental information dated July 7, 2000 and November 17, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
- 6.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium	4.3	UN1428	I

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are two (2) non-DOT specification steel portable tanks. Each tank is approximately 24 feet long and 10 ft. five inches (10'-5") in diameter. Each tank has one (1) bottom outlet and 9 top openings with flanged nozzles, including an 18 inch man way. The tare weight of each tank is 35,000 pounds and each tank may contain up to 19,200 pounds of sodium.

b. OPERATIONAL CONTROLS -

(1) The sodium must be fused solid and completely covered by a nitrogen blanket prior to shipment. The nitrogen blanket will be maintained in each tank at a pressure between 5 and 10 psig.

(2) All tank openings must be flanged closed prior and during shipment.

(3) This exemption authorizes the one-way, one-time transport from Idaho Falls, ID to Deer Trail, CO. The portable tanks must be shipped on an exclusive use vehicle with escort cars, front and rear.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at the facility where the package is offered for transportation.

b. MARKING - Each portable tank must be marked "DOT-E 12484" as specified in §§ 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard the motor vehicle used to transport the portable tanks covered by this exemption.

b. Each portable tank tie down assembly must conform to the requirements of 49 CFR § 393.100.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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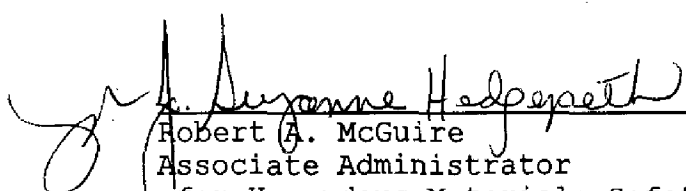
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must submit to the AAHMS a written report detailing the successful completion of this one-way, one-time transportation. The report must include any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, SW, Washington, DC
20590-0001, Attention: Records Center, 202-366-5046.

PO: PTolson/sln